

M2.1 Defences RASE

Learner Instructions

You are prosecuting a contested hearing where the accused has been charged with driving whilst their authorisation was suspended on 3 separate occasions.

In the course of the contested hearing the issue to be decided was whether the accused had a defence of mistake of fact available to them for each charge. It is conceded that at the time on each occasion the accused's licence was suspended due to the accumulation of demerit points.

The accused gives the following evidence for each charge:

Charge 1 (date of offence 1/08/N-1)

The accused was spoken to by police while driving and told that their licence was suspended. The accused stated they were unaware that they were suspended as they had not received any mail informing them that they were suspended. The accused accepted that they had received 10 speeding fines within 3 years leading up to their suspension and had paid those fines. They also accept that they received notices in relation to their demerit points but did not realise that they had exceeded their demerit point limit. The accused had not made any enquiries with VicRoads in relation to their licence.

Charge 2 (date of offence 3/08/N-1)

The accused was spoken to by police while driving and again stated that they were unaware that their licence was suspended as they had not received any mail informing them of this fact.

Charge 3 (date of offence 1/09/N-1)

The accused was spoken to by police while driving in the car park of a shopping centre. They stated that they knew they were suspended on this occasion, but they were just moving the car for a friend. The accused stated they thought this was ok because they were not driving on the road.

The Magistrate asks you for your submissions in relation to the defence raised by the accused. What is your response?

Learners are required to prepare a written submission (IRAC format preferred).